QUESTION BANK WITH ANSWERS: INTERNAL TEST I

Course: Intellectual Property Rights | Course Code: 23HSS105
Semester: IV | Session: August – December 2026

Part	Marks each	Questions	How to answer
Part A	2	Q1 – Q10	Name the IPR / principle + Act + one line of explanation
Part B	5	Q11 – Q20	Concept + sections of the Act + apply to the scenario + table or conclusion
Part C	10	Q21 – Q25	Introduction + (a)/(b) in headings + table/diagram + case law + conclusion

Tip: IPR answers are scenario-based. Always **name the right**, **quote the Act and section**, then **apply it to the scenario**. A quick-revision table of all IPRs is at the end.

PART A: 2 Marks Questions

Q1. [2 Marks | CO1 | L1]

Scenario: A bakery chain registers its name and a crown-shaped emblem with the Trade Marks Registry before opening outlets in new cities.

Question: Identify the category of intellectual property right applicable in this situation.

Answer:

Trademark, under the **Trade Marks Act, 1999**.

- The bakery's name is a **word mark** and the crown emblem is a **device mark (logo)**.
- A trademark distinguishes the goods/services of one business from others. Registration is valid for **10 years** and can be renewed again and again.

Q2. [2 Marks | CO6 | L2]

Scenario: An independent game designer uploads original character sketches to her portfolio website and wants formal legal proof that she is the author.

Question: State the legal procedure through which she can establish ownership of her work.

Answer:

Copyright registration with the Copyright Office under **Section 45 of the Copyright Act, 1957**.

- Copyright exists automatically, but registration gives **legal proof**: the entry in the Register of Copyrights is **prima facie evidence** of authorship (Section 48).
- Procedure: apply online (Form XIV + fee) → diary number → 30-day waiting period for objections → examination → registration certificate. The sketches are registered as **artistic works**.

Q3. [2 Marks | CO3 | L1]

Scenario: An Indian footwear brand and a Brazilian apparel brand use nearly identical emblems in their home markets and seek coordinated protection abroad.

Question: Name the international organization that facilitates worldwide intellectual property protection.

Answer:

WIPO: World Intellectual Property Organization (Geneva; a UN specialized agency).

- Through the **Madrid System** administered by WIPO, both brands can seek trademark protection in many countries with a single international application.

Q4. [2 Marks | CO3 | L2]

Scenario: A YouTuber reads out large portions of a published book in his video without crediting the author.

Question: Indicate the basic principle of copyright law that is violated.

Answer:

The **author's exclusive right** to reproduce the work and communicate it to the public (Section 14) is violated; this is **infringement** (Section 51).

- Using **large portions** for a public video is not **fair dealing** (Section 52).
- Not crediting the author also violates the author's **moral right of attribution (paternity)** under Section 57.

Q5. [2 Marks | CO3 | L1]

Scenario: A violinist plays her own composed piece at a ticketed city music festival.

Question: Identify the specific copyright right exercised by the performer.

Answer:

The **right to perform the work in public** (performing right) under **Section 14(a)(iii)** of the Copyright Act, as the composer of the musical work.

- As a performer she also has **performer's rights** (Section 38): no one may record or broadcast her live performance without consent, for **50 years**.

Q6. [2 Marks | CO1 | L1]

Scenario: A pharmaceutical firm develops a new method of manufacturing a drug and wants to stop competitors from using the method for 20 years.

Question: Identify the intellectual property right that suits this need.

Answer:

A **process patent** under the **Patents Act, 1970**.

- It gives the exclusive right to stop others from using the process and from selling products made directly by it (Section 48).
- Term: **20 years from the date of filing** (Section 53). The method must be new, involve an inventive step and be industrially applicable.

Q7. [2 Marks | CO6 | L1]

Scenario: A furniture company creates a chair whose curved shape and surface pattern are its main selling point, and it wants to protect only this appearance.

Question: Name the IPR that protects the visual appearance of an article.

Answer:

Industrial design, registered under the **Designs Act, 2000**.

- It protects the shape, configuration, pattern or ornament of an article that appeals to the eye, not how the chair functions.
- Term: **10 years**, extendable by **5 years** (maximum 15 years).

Q8. [2 Marks | CO6 | L1]

Scenario: A weavers' cooperative wants to stop outsiders from selling ordinary sarees under the name of their region's famous silk.

Question: Identify the IPR that protects goods linked to a specific geographical origin.

Answer:

Geographical Indication (GI) under the **Geographical Indications of Goods (Registration and Protection) Act, 1999**.

- Only registered producers/authorised users from that region can use the name (e.g. Kanchipuram silk, Banarasi saree).
- Registration is valid for **10 years** and renewable indefinitely.

Q9. [2 Marks | CO3 | L1]

Scenario: A novelist passes away, and his family wants to know how long the copyright in his published novels will last.

Question: State the term of copyright protection for a literary work under the Indian Copyright Act, 1957.

Answer:

Lifetime of the author + 60 years (Section 22), counted from the beginning of the calendar year after the year of the author's death.

- During these 60 years the family (legal heirs) own the copyright; after that the novels enter the **public domain**.

Q10. [2 Marks | CO3 | L2]

Scenario: A filmmaker claims exclusive ownership of the general theme "a robot befriends a lonely child" after making his film.

Question: State the principle of copyright law that limits his claim.

Answer:

The **idea–expression dichotomy**: copyright protects only the **expression** of an idea, not the idea or theme itself.

- Anyone may make a film on the same theme if they express it in their own way.
- Supreme Court: **R.G. Anand v. Delux Films (1978)**: there is no copyright in an idea, theme or plot.

PART B: 5 Marks Questions

Q11. [5 Marks | CO1 | L3]

Scenario: A food-delivery startup develops a mobile app, an animated mascot, a tagline, and a proprietary route-optimisation algorithm.

Question: Explain the different types of intellectual property rights relevant to this scenario by applying suitable examples.

Answer:

Intellectual property rights are legal rights over creations of the mind. The main types are shown below; four of them apply to this startup.

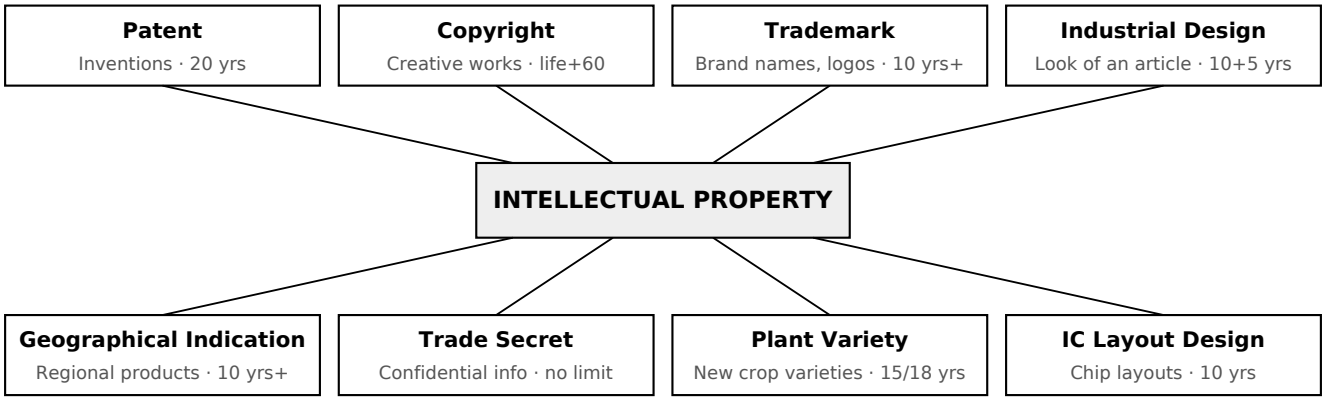


Figure: Types of intellectual property rights (with term of protection in India)

Creation	IPR	Explanation
Mobile app (code)	Copyright	Source code is a computer programme = **literary work** (Sec 2(o), Copyright Act 1957). Protected automatically for life + 60 years. The app's name can be a trademark.
Animated mascot	Copyright + Trademark	The drawing is an **artistic work**; if used as a brand symbol it can be registered as a **device trademark**.
Tagline	Trademark	Short slogans are usually not protected by copyright, but a distinctive tagline can be registered as a **trademark** (Trade Marks Act 1999; 10 years, renewable).
Route-optimisation algorithm	Trade secret	Algorithms **per se** are not patentable in India (**Sec 3(k), Patents Act**). It is best kept as a **trade secret** protected by NDAs and confidentiality clauses; if it gives a technical effect with hardware, a patent may be possible.

Conclusion: By combining copyright, trademarks and trade secrets, the startup protects its code, brand identity and competitive edge.

Q12. [5 Marks | CO3 | L2]

Scenario: A cartoonist finds that several merchandise shops are printing his comic characters on T-shirts and mugs without his consent.

Question: Describe the copyright protections available to safeguard his creative work.

Answer:

The comic characters are **original artistic works** (Sec 2(c)), so the cartoonist owns copyright automatically from creation.

Rights of the cartoonist (Sec 14(c))

- Reproduce the work in any material form, including printing on T-shirts and mugs.
- Issue copies to the public.
- Communicate the work to the public and include it in films.
- Make adaptations and license others (character merchandising).

Infringement

Printing and selling the characters without consent is **infringement under Sec 51**: reproduction and sale of infringing copies.

Remedies

- **Civil (Sec 55)**: injunction, damages, account of profits, delivery-up of infringing goods.
- **Criminal (Sec 63)**: imprisonment of 6 months to 3 years and a fine of ₹50,000 to ₹2 lakh; police can seize infringing goods (Sec 64).
- **Extra steps**: register the copyright for evidence (Sec 45) and register the characters as **trademarks** for merchandise classes.

Q13. [5 Marks | CO3 | L3]

Scenario: An African nation joins several global IP treaties so that its inventors and musicians receive protection in other member countries.

Question: Explain how international organizations/treaties contribute to IPR.

Answer:

IP rights are **territorial**, protected only in the country that grants them. International treaties extend protection across borders.

Organization / Treaty	Contribution
WIPO (1967, Geneva)	UN agency that administers most IP treaties, gives technical help to developing countries and resolves disputes
Paris Convention (1883)	Industrial property: national treatment + **right of priority** (12 months for patents, 6 months for trademarks/designs)
Berne Convention (1886)	Copyright: national treatment, **automatic protection** without formalities, minimum term life + 50 years
TRIPS Agreement (1995, WTO)	Minimum standards for all IPRs, enforcement rules and WTO dispute settlement
PCT / Madrid / Hague	One international application for patents / trademarks / designs in many countries

How the nation benefits

- Its **musicians** get automatic copyright protection in all Berne members.
- Its **inventors** can file one PCT application and claim priority abroad.
- Foreign investment and technology transfer increase due to reliable IP laws.
- Disputes can be settled through WTO / WIPO mechanisms.

Q14. [5 Marks | CO3 | L2]

Scenario: A writer retells a Panchatantra fable in a modern setting, changing only the character names, and claims exclusive ownership of the story.

Question: Examine the requirement of originality in copyright law for this situation.

Answer:

Copyright subsists only in **original** literary, dramatic, musical and artistic works (**Sec 13(1)(a)**).

Meaning of originality

- The work must **originate from the author** (not be copied) and show a **minimum degree of creativity**.
- Supreme Court in **Eastern Book Company v. D.B. Modak (2008)** adopted the "**modicum of creativity**" test, rejecting the pure "sweat of the brow" approach.

Application to the scenario

- The Panchatantra is an ancient work in the **public domain**; anyone can use it.
- Changing only character names is a trivial change with no creative input, so the retelling **lacks originality**.
- Under the **idea–expression dichotomy**, the plot and moral of the fable cannot be owned.
- The writer may get **thin protection** only for genuinely new expression he added (new dialogue, descriptions, modern scenes), not for the story itself.

Conclusion: His claim of exclusive ownership over the fable is invalid; others remain free to retell it.

Q15. [5 Marks | CO6 | L3]

Scenario: A postgraduate student prepares an animated tutorial as part of coursework under a faculty guide and uploads it to a public repository. A third party downloads it and sells it commercially.

Question: Illustrate how issues of copyright ownership arise in this case.

Answer:

Who is the first owner? (Sec 17)

- General rule: the **author** (creator) is the first owner, so the **student** owns the animated tutorial.
- The employer owns works made under a **contract of service**, but a student is not an employee of the university.
- The **university's IP policy** or any agreement signed by the student may assign or share ownership.
- The **faculty guide** is a joint author (Sec 2(z)) only if he contributed actual creative expression; mere guidance or ideas do not make him an author.

Effect of uploading to a public repository

- Uploading makes the work **available**, not **free for all**; it is not public domain.
- Use is governed by the repository's licence (e.g. Creative Commons Non-Commercial). If no licence allows sale, all rights remain with the owner.

Third party's act

- Downloading and **selling commercially** without permission infringes the rights of reproduction, issuing copies and communication to the public (Sec 14, Sec 51).
- It is not fair dealing, being commercial and involving the whole work.

Remedy

The owner (student and/or university, as per policy) can sue for injunction, damages and profits (Sec 55) and file a criminal complaint (Sec 63).

Q16. [5 Marks | CO1 | L4]

Scenario: An engineering student invents a water-saving device and also writes a technical manual for it.

Question: Distinguish between the IPR that protects the device and the one that protects the manual, with examples.

Answer:

The **device** is protected by a **patent**; the **manual** is protected by **copyright**.

Basis	Patent (device)	Copyright (manual)
Law	Patents Act, 1970	Copyright Act, 1957
Protects	The invention: its working and technical solution	The expression: text, diagrams, layout of the manual
Requirements	Novelty, inventive step, industrial application	Originality
Registration	Compulsory (application, examination, grant)	Not compulsory; arises automatically
Term	20 years from filing	Life of author + 60 years
Stops others from	Making, using, selling the device	Copying or reproducing the manual
Example	A valve mechanism that cuts water flow by 40%	The printed/online user guide

Key point: Copyright in the manual does **not** stop anyone from building the device after reading it; only a patent can do that. So the student should file a patent **before** publishing the manual, because publishing first destroys novelty.

Q17. [5 Marks | CO3 | L2]

Scenario: A composer assigns her album rights to a record label, which later edits and distorts her songs in a way that harms her reputation.

Question: Explain the economic and moral rights of an author and how they apply here.

Answer:

Economic rights (Sec 14)

Exclusive rights to reproduce, issue copies, perform/communicate to the public, make sound recordings/films, translate and adapt the work. These rights earn money and **can be assigned or licensed** (Sec 18, 19).

Moral rights (Sec 57)

- **Right of paternity**: to claim authorship.
- **Right of integrity**: to restrain or claim damages for any **distortion, mutilation or modification** that harms the author's honour or reputation.
- Moral rights stay with the author **even after assignment** of the copyright.

Economic rights	Moral rights
Monetary benefit	Protect reputation and personality
Transferable	Not transferable

Economic rights	Moral rights
Assigned to the label here	Remain with the composer

Application

- The label legally holds the economic rights, so it may reproduce and sell the album.
- The **distortion harming her reputation** violates her **right of integrity**. She can seek an injunction and damages under Sec 57.
- Case: **Amar Nath Sehgal v. Union of India (2005, Delhi HC)**: the court upheld an artist's moral rights over his damaged mural.

Q18. [5 Marks | CO3 | L3]

Scenario: A film critic quotes short passages from a novel in a review, while a coaching centre photocopies whole chapters of the same novel for sale.

Question: Explain the concept of fair dealing and the limitations on an author's rights, using this scenario.

Answer:

Fair dealing (Sec 52) allows limited use of a copyright work without permission for purposes such as private use including research, **criticism or review**, and reporting of current events.

Factors courts consider

Purpose (commercial or not), amount and substantiality used, effect on the market of the original, and acknowledgement of the author.

Application

Film critic	Coaching centre
Quotes **short passages**	Copies **whole chapters**
Purpose: criticism/review	Purpose: **sale for profit**
Does not replace the book	Replaces the need to buy the book
Fair dealing: allowed	**Infringement (Sec 51)**

Other limitations on an author's rights

- Limited term (life + 60 years).
- Idea–expression dichotomy.
- Exceptions for education, libraries, judicial proceedings, religious/official ceremonies (Sec 52).
- Compulsory licences for works withheld from the public (Sec 31) and for persons with disabilities (Sec 31B).

Q19. [5 Marks | CO3 | L2]

Scenario: A Nigerian novelist finds that her books are being sold in India, although she never registered her work there.

Question: Explain the principles of national treatment and automatic protection under the Berne Convention.

Answer:

The **Berne Convention (1886)** protects literary and artistic works internationally. Both India and Nigeria are members.

1. National treatment

Works originating in one member country get the **same protection** in every other member country as that country gives to its own nationals. Her novels are therefore protected in India just like an Indian author's novels.

2. Automatic protection

Protection does **not** depend on registration or any formality (Art 5(2)). Copyright arises on creation, so her not registering in India does not matter.

3. Independence of protection

Protection in India does not depend on protection in Nigeria.

Application

India's **International Copyright Order, 1999** extends the Copyright Act to works of Berne/WTO member countries. The unauthorised sale of her books is **infringement**, and she can sue in India for injunction, damages and seizure of copies.

Q20. [5 Marks | CO6 | L3]

Scenario: A handicraft cooperative wants to protect (a) a new ornamental pattern on its cushion covers and (b) the regional name under which its products are sold.

Question: Explain the relevant IPR forms and the duration of protection for each.

Answer:

(a) Ornamental pattern: Industrial Design (Designs Act, 2000)

- Protects new/original features of **shape, pattern or ornament** applied to an article that appeal to the eye.
- It must be new, not previously published, and applied by an industrial process.
- **Duration: 10 years + 5 years extension = 15 years maximum.**
- Note: if the pattern is not registered as a design and is reproduced more than 50 times industrially, its copyright is lost (Sec 15(2), Copyright Act), so design registration is important.

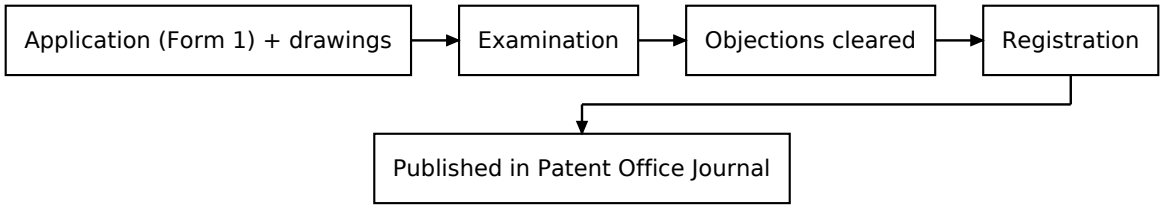


Figure: Design registration procedure

(b) Regional name: Geographical Indication (GI Act, 1999)

- Protects names of goods whose quality or reputation comes from a particular region (e.g. Channapatna toys, Kondapalli toys).
- Registered by an association of producers; members register as **authorised users**.
- **Duration: 10 years, renewable indefinitely.**

IPR	Law	Duration
Industrial Design	Designs Act, 2000	10 + 5 years
Geographical Indication	GI Act, 1999	10 years, renewable forever

PART C: 10 Marks Questions

Q21. [10 Marks | CO1 | L4]

Scenario: An electric-vehicle manufacturer develops embedded control software, publishes detailed owner's handbooks, and creates a distinctive logo and a uniquely styled dashboard layout.

Question: (a) Analyze the different forms of intellectual property involved in this case. (b) Evaluate the importance of intellectual property rights in ensuring legal protection for these creations.

Answer:

Introduction

Intellectual property rights (IPR) are legal rights given to creators over creations of the mind: inventions, literary and artistic works, brands and designs. An EV manufacturer creates several kinds of IP.

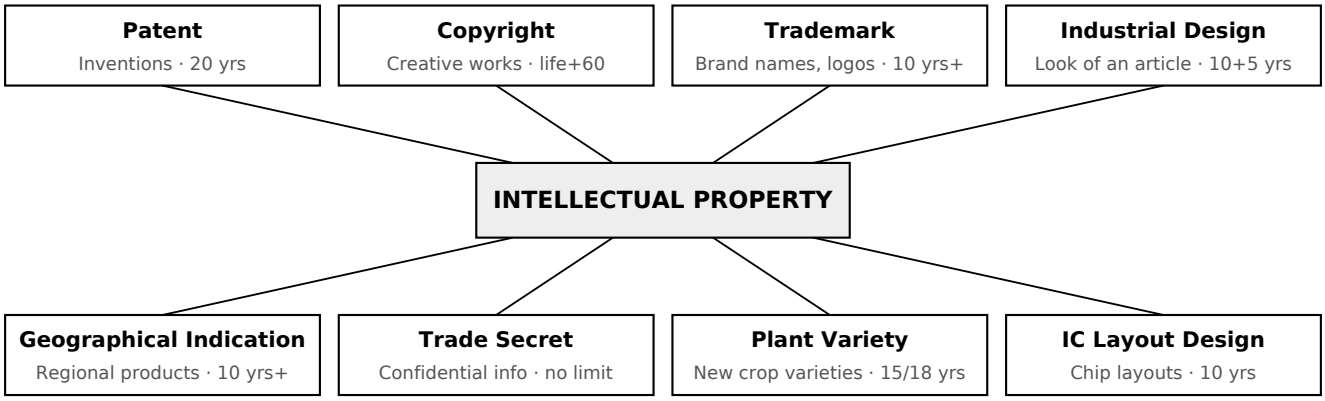


Figure: Types of intellectual property rights (with term of protection in India)

(a) Forms of IP involved

Creation	IPR	Analysis
Embedded control software	Copyright (+ patent / trade secret)	Code is a **literary work** (Sec 2(o), Copyright Act 1957). Software **per se** is not patentable (Sec 3(k), Patents Act), but if it produces a **technical effect** with the vehicle hardware (e.g. a new battery-management method) it may be patented (Ferid Allani v. UoI, 2019). Source code can also be kept as a **trade secret**.
Owner's handbooks	Copyright	Text, diagrams and illustrations are original **literary and artistic works**; protected automatically for life + 60 years.
Distinctive logo	Trademark (+ copyright)	Registered as a **device mark** under the Trade Marks Act 1999 (10 years, renewable); the artwork is also an artistic work.
Styled dashboard layout	Industrial design	The shape and configuration that appeal to the eye can be registered under the **Designs Act 2000** (10 + 5 years).

(b) Importance of IPR

1. **Exclusive rights**: competitors cannot copy the software, manuals, logo or design.
2. **Return on R&D investment**: EV technology is expensive, and patents/copyright let the firm recover costs.

3. **Brand identity and goodwill**: the trademark protects reputation and prevents counterfeit parts.
4. **Competitive advantage**: a unique design attracts customers.
5. **Licensing income**: software or designs can be licensed to other manufacturers.
6. **Attracts investors**: registered IP is a valuable business asset.
7. **Legal remedies**: injunctions, damages and seizure against infringers.
8. **Consumer protection**: buyers can trust genuine branded products.
9. **Encourages innovation** in the wider EV sector through disclosure of patented technology.

Conclusion

A layered IP strategy (copyright for code and manuals, a patent for technical inventions, a trademark for the logo, a design for the dashboard, trade secrets for source code) gives the manufacturer complete legal protection.

Q22. [10 Marks | CO3 & CO6 | L5]

Scenario: A short-story writer plans to release her original collection as an e-book on an online platform and wants complete legal security beforehand.

Question: Critically analyze the fundamental principles of copyright law and evaluate the role of copyright registration in protecting literary works.

Answer:

Introduction

Copyright is the exclusive right given to authors of original literary, dramatic, musical and artistic works, cinematograph films and sound recordings, under the **Copyright Act, 1957**.

Fundamental principles

1. **Originality**: only original works are protected; the "modicum of creativity" test applies (EBC v. D.B. Modak, 2008).
2. **Idea–expression dichotomy**: expression is protected, not ideas or plots (R.G. Anand v. Delux Films, 1978).
3. **Automatic protection**: copyright arises on creation; registration is optional.
4. **Bundle of economic rights (Sec 14)**: reproduce, issue copies, communicate to the public, translate, adapt.
5. **Moral rights (Sec 57)**: paternity and integrity.
6. **Limited duration**: life of author + 60 years.
7. **Limitations**: fair dealing and other exceptions (Sec 52).
8. **Ownership and transfer**: the author is the first owner (Sec 17); rights can be assigned or licensed in writing (Sec 18, 19, 30).
9. **Territoriality with international reach**: through Berne/TRIPS national treatment.
10. **Digital protection**: protection of technological measures (Sec 65A) and rights management information (Sec 65B).

Critical analysis

- Automatic protection helps authors, but without records it can be hard to **prove** authorship and date in a dispute.
- The idea–expression line is not always clear, e.g. similar plots in stories.
- Online piracy of e-books spreads fast; enforcement across borders is slow and costly.
- Fair dealing is decided case by case, which creates uncertainty.

Role of copyright registration

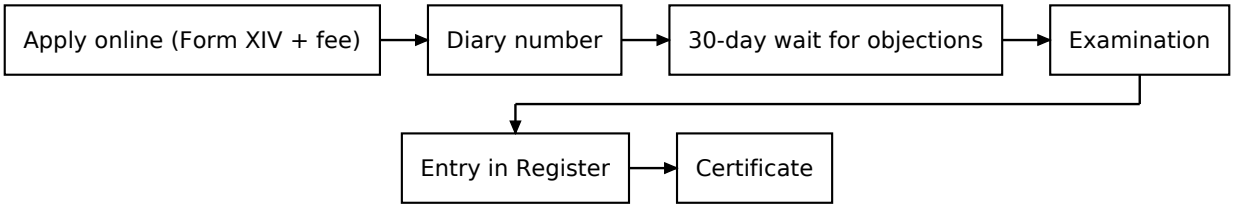


Figure: Copyright registration procedure (Sec 45, Copyright Act 1957)

- **Prima facie evidence**: entries in the Register of Copyrights are presumed correct (Sec 48), which shifts the burden of proof to the infringer.
- Establishes the **date of creation** and authorship publicly.
- Helps in **infringement suits**, platform takedown requests and border (customs) enforcement.
- Makes **licensing and assignment** with the e-book platform easier and more credible.
- **Limitation**: registration is not mandatory and not conclusive; it can be challenged, and courts have held it is not a pre-condition for suing.

Advice to the writer

Register the collection before release, sign a clear licence with the platform (territory, royalty, term), use DRM/technological protection, and add a copyright notice with her name.

Conclusion

Copyright protects her stories automatically, but registration turns that protection into strong, provable evidence, which is essential for an online release.

Q23. [10 Marks | CO3 | L4]

Scenario: A local orchestra performs a composer's musical score at a ticketed public concert without obtaining a licence or paying royalties.

Question: (a) Analyze the violation of the right to perform a work publicly in this situation. (b) Assess how copyright law provides remedies to the author against such unauthorized use.

Answer:

Introduction

A **musical work** (the score) is protected under the Copyright Act, 1957. Among the author's exclusive rights is the **right to perform the work in public**.

(a) Violation of the public performance right

- **Sec 14(a)(iii)** gives the owner the exclusive right to perform the work in public or communicate it to the public.
- A ticketed concert open to paying members of the public is a **public performance**.
- Performing without a licence is **infringement under Sec 51(a)(i)**.
- The venue owner who **permits the place to be used for profit** may also be liable (Sec 51(a)(ii)), unless unaware of the infringement.
- **No exception applies**: Sec 52 allows performances in educational institutions, at religious/official ceremonies, or by amateur clubs for **non-paying** audiences, but this concert is **ticketed and commercial**.
- Proper route: take a licence from the composer or from a registered **copyright society** such as **IPRS** (Sec 33) and pay royalties.

(b) Remedies

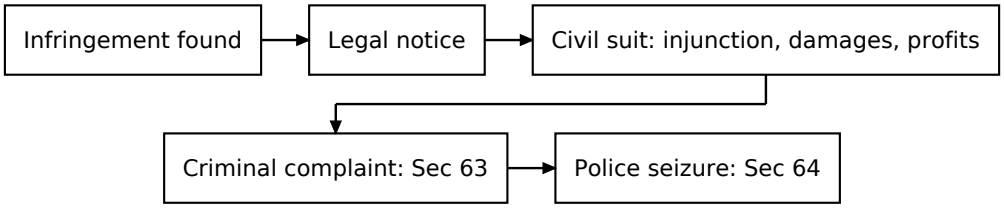


Figure: Remedies available to the copyright owner

Type	Remedy
Civil (Sec 55)	Injunction (interim and permanent) to stop future performances; damages; account of profits (share of ticket revenue); delivery-up of infringing copies (Sec 58)
Criminal (Sec 63)	Imprisonment of 6 months to 3 years and a fine of ₹50,000 to ₹2 lakh; higher punishment for repeat offence (Sec 63A)
Police powers (Sec 64)	Seizure of infringing copies without warrant
Jurisdiction (Sec 62)	The author can sue where she resides or carries on business
Collective route	The copyright society can enforce and collect royalties on her behalf

Assessment

These remedies are strong on paper: injunctions quickly stop repeat performances, and damages plus profits compensate the author. In practice, proving the number of performances and revenue, and the cost and delay of litigation, can weaken enforcement, which is why licensing through copyright societies is the most effective protection.

Conclusion

The orchestra infringed the composer's performing right and is liable under civil and criminal law. The composer can stop the performances and recover compensation.

Q24. [10 Marks | CO3 | L4]

Scenario: A Hollywood studio and an Indian animation studio co-produce a film that will be released in more than 100 countries.

Question: (a) Compare and contrast the Berne Convention and the TRIPS Agreement with respect to authors' rights and limitations. (b) Evaluate the role of WIPO in harmonising copyright protection across countries.

Answer:

Introduction

Copyright is territorial. For a film released in 100+ countries, protection comes from international treaties, mainly the **Berne Convention** and the **TRIPS Agreement**, together with the work of **WIPO**.

(a) Berne Convention vs TRIPS Agreement

Basis	Berne Convention (1886)	TRIPS Agreement (1995)
Administered by	WIPO	WTO
Scope	Only literary and artistic works (copyright)	All IPRs: copyright, trademarks, patents, designs, GIs, layout designs, trade secrets
National treatment	Yes	Yes, plus Most-Favoured-Nation treatment
Formalities	None: automatic protection	Same (incorporates Berne Arts 1–21)
Minimum term	Life + 50 years	Life + 50; 50 years from publication for works not based on a person's life
Moral rights	Yes: Art 6bis (attribution, integrity)	**Excluded**: no obligation for moral rights
New subject matter	Not specific	Computer programs as literary works, databases, rental rights
Limitations	Three-step test for reproduction (Art 9(2)); quotation and teaching (Art 10); news (Art 10bis)	Three-step test extended to **all** exclusive rights (Art 13)
Enforcement	No real enforcement mechanism	Detailed civil, criminal and border measures
Disputes	International Court of Justice (rarely used)	Binding WTO dispute settlement with trade sanctions

Similarities: both give national treatment, automatic protection and minimum standards. TRIPS is "**Berne-plus**": it includes Berne's substance and adds enforcement.

(b) Role of WIPO

1. **Administers treaties**: Berne, Rome, WIPO Copyright Treaty (WCT, 1996), WIPO Performances and Phonograms Treaty (WPPT, 1996), Beijing Treaty (2012), Marrakesh Treaty (2013).
2. **Digital-age rules**: WCT/WPPT protect works online, including technological protection measures and rights information. India joined both in 2018.
3. **Norm-setting** through the Standing Committee on Copyright and Related Rights.
4. **Technical assistance** and capacity building for developing countries.
5. **Dispute resolution** through the WIPO Arbitration and Mediation Center, useful for co-production disputes.
6. **Cooperation with WTO** to implement TRIPS.
7. Databases, model laws and awareness programmes.

Application to the film

The film gets automatic protection in all Berne/WTO countries without registering in each; ownership between the studios should be fixed by a written co-production agreement; piracy in any member country can be fought under that country's law with TRIPS-standard remedies.

Conclusion

Berne gives the basic principles, TRIPS adds enforcement, and WIPO keeps the global system harmonised and updated.

Q25. [10 Marks | CO6 | L3]

Scenario: A farmers' producer company develops a new rice variety and sells it under a region-specific name in a distinctively shaped pack, while a sister electronics start-up develops an original semiconductor chip layout.

Question: (a) Identify the intellectual property right available for each creation. (b) Explain the registration procedure and duration of protection for each.

Answer:

(a) IPR for each creation

Creation	IPR	Law
New rice variety	Plant variety protection	Protection of Plant Varieties and Farmers' Rights Act, 2001
Region-specific name	Geographical Indication	GI of Goods (Registration and Protection) Act, 1999
Distinctively shaped pack	Industrial design (or shape trademark)	Designs Act, 2000 / Trade Marks Act, 1999
Semiconductor chip layout	Layout-design of integrated circuits	Semiconductor Integrated Circuits Layout-Design Act, 2000

(b) Procedure and duration

1. Rice variety: PPV&FR Act, 2001

- Criteria: **Novelty, Distinctiveness, Uniformity, Stability (NDUS)**.
- Apply to the Registrar, PPV&FR Authority (New Delhi), with a denomination, seed sample and passport data.
- **DUS testing** is done for about two crop seasons.
- The application is advertised in the Plant Variety Journal; 3 months for opposition; certificate issued.

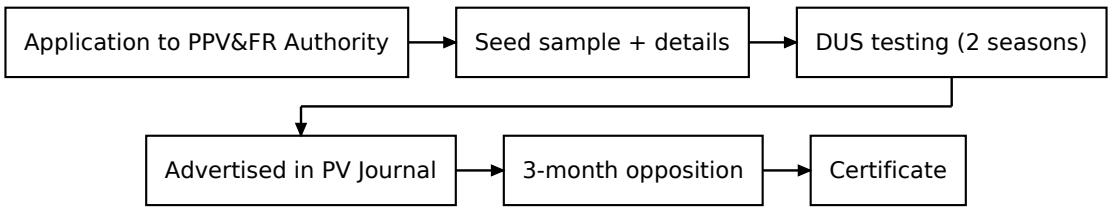


Figure: Plant variety registration procedure

- **Duration: 15 years for crops like rice** (18 years for trees and vines). The certificate is initially for 6 years and is renewable up to 15.
- Farmers keep the right to save, use, exchange and sell farm-saved seed (not branded seed).

2. Region-specific name: Geographical Indication

- The name must show that the rice's quality or reputation comes from the region (e.g. Basmati, Kalanamak rice).
- The association of producers applies to the GI Registry, Chennai, with the special characteristics, map and production method.
- Examination by experts → advertisement in the GI Journal → 3-month opposition → registration → producers register as authorised users.

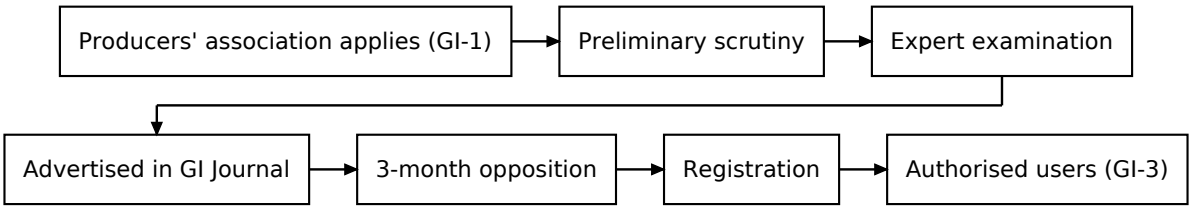


Figure: GI registration procedure (GI Registry, Chennai)

- **Duration: 10 years, renewable indefinitely.**

3. Pack shape: Industrial Design

- Application (Form 1) with drawings and a statement of novelty to the Controller (Patent Office) → examination → registration → publication in the Patent Office Journal.
- **Duration: 10 years + 5 years extension.** (If registered as a shape trademark: 10 years, renewable.)

4. Chip layout: SICLD Act, 2000

- The layout must be **original, distinctive** and not commercially exploited for more than 2 years before filing.
- Apply to the Semiconductor Integrated Circuits Layout-Design Registry (MeitY, New Delhi) → examination → advertisement → opposition → registration.

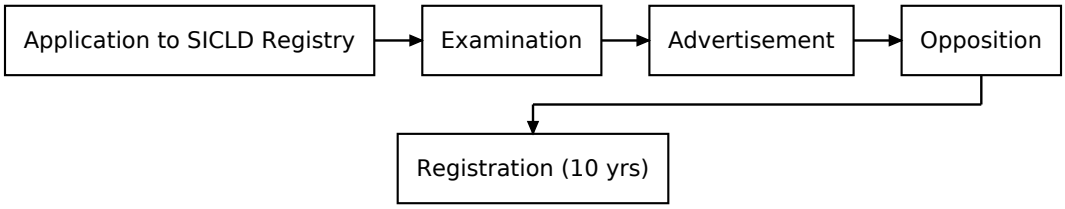


Figure: Layout-design registration procedure

- **Duration: 10 years** from the filing date or the date of first commercial exploitation, whichever is earlier.

Summary

Creation	IPR	Duration
Rice variety	Plant variety	15 years
Regional name	GI	10 years, renewable forever
Pack shape	Design	10 + 5 years
Chip layout	Layout-design	10 years

Quick Revision: All IPRs at a Glance

IPR	Indian law	Protects	Term
Patent	Patents Act, 1970	New inventions (product/process)	20 years from filing
Copyright	Copyright Act, 1957	Literary, dramatic, musical, artistic works, films, sound recordings	Life + 60 years (films/sound recordings: 60 years from publication)
Performer's right	Copyright Act, Sec 38	Live performances	50 years
Trademark	Trade Marks Act, 1999	Brand names, logos, slogans, shapes	10 years, renewable
Industrial design	Designs Act, 2000	Shape, pattern, ornament of an article	10 + 5 years
Geographical Indication	GI Act, 1999	Goods linked to a region	10 years, renewable
Plant variety	PPV&FR Act, 2001	New plant varieties	15 years (trees/vines 18)
IC layout-design	SICLD Act, 2000	Semiconductor chip layouts	10 years
Trade secret	No specific Act (contract / confidentiality law)	Confidential business information	As long as kept secret

Important Sections of the Copyright Act, 1957

Section	What it says (Copyright Act, 1957)
Sec 2(o)	Literary work includes computer programmes
Sec 13	Works in which copyright subsists (original works)
Sec 14	Meaning of copyright: the exclusive economic rights
Sec 17	First owner of copyright
Sec 18, 19	Assignment of copyright
Sec 22	Term: life + 60 years
Sec 33	Copyright societies (e.g. IPRS)
Sec 38	Performer's rights (50 years)
Sec 45, 48	Registration; Register is prima facie evidence
Sec 51	When copyright is infringed
Sec 52	Fair dealing and other exceptions
Sec 55	Civil remedies
Sec 57	Moral rights (paternity, integrity)
Sec 63, 64	Criminal punishment; police seizure
Sec 65A, 65B	Technological protection measures; rights management information

Important Cases

Case	Principle
R.G. Anand v. Delux Films (1978, SC)	No copyright in idea, theme or plot (idea–expression)

Case	Principle
Eastern Book Company v. D.B. Modak (2008, SC)	Originality needs a "modicum of creativity"
Amar Nath Sehgal v. Union of India (2005, Delhi HC)	Author's moral right of integrity protected
Ferid Allani v. Union of India (2019, Delhi HC)	Software with a technical effect may be patentable

****** End of Question Bank ******